



Bill Number: H.B. 2248

Kavanagh Floor Amendment

Reference to: HEALTH AND HUMAN SERVICES

Committee Amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Modifies the definition of *medical intervention* to remove any medical procedure, treatment, device, drug, injection, medication or medical action taken to diagnose a person.

KAVANAGH FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2248
(Reference to HEALTH AND HUMAN SERVICES Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.

[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.

~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.

~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.

<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.

~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.

{{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS}} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.

{{Orange lowercase underlining in double curly brackets}} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.

~~{{ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS}}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.

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≤≤Double orange underlined carets enclosing an entire section≥≥ indicate that the amendment to an amendment is adding the section to the bill.

~~≤≤Orange strikeout with double orange underlined carets enclosing an entire section≥≥~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 6, article 4.2, Arizona Revised
3 Statutes, is amended by adding section 36-683, to read:

4 36-683. Medical interventions; prohibition; applicability;
5 enforcement; definitions

6 A. A BUSINESS ENTITY DOING BUSINESS IN THIS STATE MAY NOT:

7 1. REFUSE TO PROVIDE ANY SERVICE, PRODUCT, ADMISSION TO A VENUE OR
8 TRANSPORTATION TO A PERSON BECAUSE THAT PERSON HAS OR HAS NOT RECEIVED OR
9 USED A MEDICAL INTERVENTION.

10 2. REQUIRE ANY MEDICAL INTERVENTION AS A TERM OF EMPLOYMENT UNLESS
11 THE TERMS OF EMPLOYMENT INCLUDE TRAVEL TO A FOREIGN JURISDICTION REQUIRING
12 A MEDICAL INTERVENTION AS THE ONLY MEANS OF ENTRY OR REQUIRE ENTRY INTO A
13 PLACE OF BUSINESS OR FACILITY IN A FOREIGN JURISDICTION AND THAT PLACE OF
14 BUSINESS OR FACILITY REQUIRES A MEDICAL INTERVENTION AS THE ONLY MEANS OF
15 ENTRY. IF AN EMPLOYEE IS REQUIRED TO RECEIVE OR USE A MEDICAL
16 INTERVENTION DUE TO TRAVEL TO A FOREIGN JURISDICTION OR ENTRY INTO A PLACE
17 OF BUSINESS OR FACILITY IN A FOREIGN JURISDICTION, THE MEDICAL

1 INTERVENTION REQUIREMENT SHALL BE INCLUDED IN EITHER A VALID WRITTEN
2 EMPLOYMENT CONTRACT BETWEEN THE EMPLOYER AND THE EMPLOYEE OR, IF A WRITTEN
3 EMPLOYMENT CONTRACT DOES NOT EXIST, AN ADVANCE WRITTEN NOTICE THAT IS
4 PROVIDED TO THE IMPACTED EMPLOYEE AT LEAST FOURTEEN DAYS BEFORE THE
5 EMPLOYEE IS REQUIRED TO RECEIVE OR USE THE MEDICAL INTERVENTION. THIS
6 PARAGRAPH DOES NOT APPLY TO BUSINESS ENTITIES THAT RECEIVE MEDICARE OR
7 MEDICAID FUNDING.

8 B. A TICKET ISSUER MAY NOT PENALIZE, DISCRIMINATE AGAINST OR DENY
9 ACCESS TO AN ENTERTAINMENT EVENT BY A TICKET HOLDER BECAUSE THE TICKET
10 HOLDER HAS OR HAS NOT RECEIVED OR USED A MEDICAL INTERVENTION.

11 C. A SCHOOL OPERATING IN THIS STATE MAY NOT REQUIRE A MEDICAL
12 INTERVENTION FOR ANY PERSON TO ATTEND THE SCHOOL, ENTER A CAMPUS OR
13 BUILDING OR BE EMPLOYED, SUBJECT TO THE PARENTS' BILL OF RIGHTS PRESCRIBED
14 IN SECTION 1-602[, UNLESS EITHER:

15 1. THE PERSON IS A STUDENT WHO IS PROHIBITED FROM ATTENDING SCHOOL
16 PURSUANT TO SECTION 15-873.

17 2. THE PERSON HAS ANY OF THE FOLLOWING INFECTIONS OR INFESTATIONS
18 AND THE RISK OF SPREADING THE INFECTION OR INFESTATION IS NOT YET
19 SUFFICIENTLY MITIGATED ACCORDING TO RULES ADOPTED BY THE DEPARTMENT:

20 (a) ACUTE CONJUNCTIVITIS.

21 (b) A PEDICULOSIS INFESTATION.

22 (c) A SCABIES INFESTATION.

23 (d) A STREPTOCOCCAL GROUP A INFECTION WITH STREPTOCOCCAL LESIONS OR
24 STREPTOCOCCAL SORE THROAT].

25 D. A BUSINESS ENTITY OPERATING IN THIS STATE MAY NOT REQUIRE A
26 MEDICAL INTERVENTION FOR ANY PERSON TO ATTEND, ENTER THE BUSINESS ENTITY'S
27 BUILDING OR PREMISES OR BE EMPLOYED.

28 E. A STATE, COUNTY OR LOCAL GOVERNMENT ENTITY OR OFFICIAL IN THIS
29 STATE MAY NOT REQUIRE ANY PERSON:

30 1. TO RECEIVE OR USE A MEDICAL INTERVENTION.

31 2. TO RECEIVE OR USE A MEDICAL INTERVENTION AS A CONDITION OF ANY
32 OF THE FOLLOWING:

33 (a) RECEIVING ANY GOVERNMENT BENEFIT.

34 (b) RECEIVING ANY GOVERNMENT SERVICE.

35 (c) RECEIVING ANY GOVERNMENT-ISSUED LICENSE OR PERMIT.

36 (d) ENTERING ANY BUILDING.

37 (e) USING TRANSPORTATION.

38 3. TO RECEIVE OR USE A MEDICAL INTERVENTION AS A TERM OF
39 EMPLOYMENT.

40 F. A BUSINESS ENTITY OR A STATE, COUNTY OR LOCAL GOVERNMENT IN THIS
41 STATE MAY NOT PROVIDE OR OFFER ANY DIFFERENT SALARY, HOURLY WAGE OR OTHER
42 ONGOING COMPENSATION OR BENEFIT TO AN EMPLOYEE BASED ON WHETHER THE
43 EMPLOYEE HAS OR HAS NOT RECEIVED OR USED A MEDICAL INTERVENTION.

44 G. THE MEDICAL INTERVENTION PROHIBITIONS PRESCRIBED IN THIS SECTION
45 DO NOT APPLY TO ANY SITUATION IN WHICH PERSONAL PROTECTIVE EQUIPMENT,
46 ITEMS OR CLOTHING ARE REQUIRED BY EMPLOYERS IN THE PUBLIC OR PRIVATE
47 SECTOR BASED ON EXISTING TRADITIONAL AND ACCEPTED INDUSTRY STANDARDS OR
48 FEDERAL LAW. THIS SUBSECTION DOES NOT APPLY TO OR INCLUDE ANY VACCINE,

1 MASK REQUIREMENT OR OTHER MEDICAL INTERVENTION THAT WAS INTRODUCED DURING
2 THE COVID-19 PANDEMIC.

3 H. THIS SECTION MAY BE ENFORCED AND INJUNCTIVE RELIEF MAY BE
4 PURSUED BY EITHER THE ATTORNEY GENERAL OR THE PROSECUTING ATTORNEY FOR THE
5 COUNTY WHERE A VIOLATION OCCURS. IF A BUSINESS ENTITY OR STATE, COUNTY OR
6 LOCAL GOVERNMENT ENTITY IN THIS STATE IS FOUND TO HAVE VIOLATED ANY
7 PROVISION OF THIS SECTION, THE ATTORNEY GENERAL OR PROSECUTING ATTORNEY,
8 AS APPLICABLE, SHALL BE AWARDED ATTORNEY FEES AND COSTS INCURRED IN
9 PURSUING THE ENFORCEMENT ACTION.

10 I. FOR THE PURPOSES OF THIS SECTION:

11 1. "BUSINESS ENTITY":

12 (a) MEANS ANY PERSON OR GROUP OF PERSONS THAT PERFORMS OR ENGAGES
13 IN ANY ACTIVITY, ENTERPRISE, PROFESSION OR OCCUPATION FOR GAIN, BENEFIT,
14 ADVANTAGE OR LIVELIHOOD, WHETHER FOR PROFIT OR NOT-FOR-PROFIT IN THIS
15 STATE.

16 (b) INCLUDES THE FOLLOWING:

17 (i) ANY SELF-EMPLOYED INDIVIDUAL, SOLE PROPRIETORSHIP, DOMESTIC
18 CORPORATION, ASSOCIATION, LIMITED LIABILITY COMPANY, LIMITED LIABILITY
19 PARTNERSHIP, BUSINESS TRUST, FOREIGN CORPORATION, FOREIGN LIMITED
20 PARTNERSHIP OR FOREIGN LIMITED LIABILITY COMPANY THAT IS AUTHORIZED TO
21 TRANSACT BUSINESS IN THIS STATE.

22 (ii) ANY BUSINESS ENTITY THAT POSSESSES A BUSINESS LICENSE, PERMIT,
23 CERTIFICATE, APPROVAL, REGISTRATION, CHARTER OR SIMILAR FORM OF
24 AUTHORIZATION ISSUED BY THIS STATE.

25 (iii) ANY BUSINESS ENTITY THAT IS EXEMPT BY LAW FROM OBTAINING A
26 BUSINESS LICENSE.

27 (iv) ANY BUSINESS ENTITY OPERATING UNLAWFULLY IN THIS STATE WITHOUT
28 A REQUIRED BUSINESS AUTHORIZATION.

29 2. "FOREIGN JURISDICTION" MEANS ANY STATE, COMMONWEALTH, COUNTRY,
30 OR NATION OUTSIDE THIS STATE.

31 3. "MEDICAL INTERVENTION" MEANS A MEDICAL PROCEDURE, TREATMENT,
32 DEVICE, DRUG, INJECTION, MEDICATION OR MEDICAL ACTION TAKEN TO
33 ~~{{DIAGNOSE,}}~~ PREVENT OR CURE A DISEASE OR ALTER THE HEALTH OR BIOLOGICAL
34 FUNCTION OF A PERSON.

35 4. "SCHOOL":

36 (a) MEANS ANY LEGAL ENTITY IN THIS STATE THAT PROVIDES INSTRUCTION
37 TO STUDENTS IN PRESCHOOL PROGRAMS, KINDERGARTEN PROGRAMS, ANY OF GRADES
38 ONE THROUGH TWELVE, CAREER AND TECHNICAL EDUCATION PROGRAMS, VOCATIONAL
39 PROGRAMS OR POSTSECONDARY EDUCATION.

40 (b) INCLUDES ANY PUBLIC SCHOOL, PRIVATE SCHOOL, PAROCHIAL SCHOOL OR
41 POSTSECONDARY EDUCATIONAL INSTITUTION.

42 (c) DOES NOT INCLUDE TRIBAL COLLEGES.

43 5. "TICKET ISSUER":

44 (a) MEANS AN INDIVIDUAL OR ENTITY THAT PROVIDES TICKETS TO AN
45 ENTERTAINMENT EVENT.

46 (b) INCLUDES:

47 (i) THE OPERATOR OF THE VENUE WHERE AN ENTERTAINMENT EVENT OCCURS.

48 (ii) THE SPONSOR OR PROMOTER OF AN ENTERTAINMENT EVENT.

1 (iii) A SPORTS TEAM THAT IS PARTICIPATING IN AN ENTERTAINMENT EVENT
2 OR A LEAGUE WHOSE TEAMS ARE PARTICIPATING IN AN ENTERTAINMENT EVENT.

3 (iv) A THEATER COMPANY, MUSICAL GROUP OR SIMILAR ENTITY THAT IS
4 PARTICIPATING IN AN ENTERTAINMENT EVENT.

5 (v) AN AGENT OF ANY INDIVIDUAL OR ENTITY DESCRIBED IN THIS
6 PARAGRAPH.

7 Sec. 2. Short title

8 This section may be cited as the "Arizona Medical Freedom
9 Act~~{[-]}~~"{[.]}

10 Enroll and engross to conform

11 Amend title to conform

JOHN KAVANAGH

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